

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 25-25

**20230930-DK-BUTTERFLY-1, INC., *Complainant* v.
CMA CGM S.A., *Respondent***

CONSENT MOTION FOR ENTRY OF PROTECTIVE ORDER

Complainant 20230930-DK-BUTTERFLY-1, Inc., f/k/a Bed Bath & Beyond Inc. (“Complainant” or “BBBY”), with the consent of Respondent CMA CGM S.A. (“Respondent” or “CMA”) (collectively, the “Parties”), hereby moves pursuant to Rule 201(i) of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.141(j), for entry of a protective order in connection with the above-captioned proceeding.

Issuance of a protective order is necessary to enable the Parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive.

A proposed protective order is attached for consideration by the Presiding Officer (the “Protective Order” or “Order”). The Parties have agreed to the terms of the Protective Order.

Dated: February 5, 2026

Respectfully submitted,

HUTH REYNOLDS LLP

/s/ J. Zachery Morris

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STIPULATED PROTECTIVE ORDER

Upon stipulation of Complainant 20230930-DK-BUTTERFLY-1, Inc., f/k/a Bed Bath & Beyond Inc. (“Complainant” or “BBBY”) and Respondent CMA CGM S.A. (“Respondent” or “CMA”), the Parties, through their respective counsel, and to expedite the exchange of certain confidential information, hereby submit the following proposed Protective Order to the Presiding Officer for due consideration and issuance:

IT IS HEREBY ORDERED THAT:

1. Except as otherwise ordered by the Presiding Officer, this Order shall apply to all documents, answers to interrogatories, answers to requests for admissions, responses to requests for production of documents, responses to subpoenas, deposition transcripts and exhibits, expert materials, or other writings produced, given or filed in this action, and all information derived from any of the foregoing, that are designated as “Confidential” or “Attorneys Eyes Only” in accordance with the terms of this Order.
2. A party (or producing non-party) may designate as “Confidential” any information that is commercially sensitive and not publicly known, including information provided by third parties to the producing party or non-party with the expectation that the information remain confidential (“Confidential Information”). Confidential Information subject to this Order shall be used solely for purposes of this litigation in accordance with provisions of this Order. Except with the prior written consent of the producing party or non-party or with prior order of the Presiding Officer, Confidential Information and any information derived therefrom may only be disclosed to:
 - a. counsel for the parties, including in-house counsel, and their legal, paralegal and clerical staff and printing, copying, and electronic discovery vendors;

- b. any officers before whom a deposition in this action is taken, including stenographic reporters, videographers, and any necessary secretarial, clerical, or other personnel of such officers engaged for the preparation of verbatim transcripts and/or recordings in this proceeding;
 - c. any person(s) who created or previously received the Confidential Information;
 - d. employees of the Federal Maritime Commission (the “Commission”);
 - e. experts retained by a party and their respective personnel; and
 - f. any other person the Parties have agreed to in advance in writing.
- 3. A party (or producing non-party) may designate as “Attorneys Eyes Only” (“AEO”) any information or material whose disclosure to anyone other than outside counsel has a substantial probability of jeopardizing the production of the producing party or non-party’s competitive business interests; the competitive or privacy interests of the producing party or non-party’s suppliers, service providers, customers or clients; or the business interests or competitive or privacy interests of a party to this proceeding. AEO material subject to this Order shall be used solely for purposes of this litigation in accordance with provisions of this Order. Except with the prior written consent of the producing party or non-party or pursuant to an order of the Presiding Officer, AEO material and any information derived therefrom may only be disclosed to:
 - a. counsel for the parties, including in-house counsel, and their legal, paralegal and clerical staff and printing, copying, and electronic discovery vendors;
 - b. any officers before whom a deposition in this action is taken, including stenographic reporters, videographers, and any necessary secretarial, clerical, or other personnel of such officers engaged for the preparation of verbatim transcripts

and/or recordings in this proceeding;

- c. any person(s) who created or previously received the AEO material;
- d. employees of the Federal Maritime Commission (the “Commission”); and
- e. non-party consultants or experts engaged by either Party or their counsel in connection with the prosecution or defense of this action (“Experts”) and non-party deposition or trial witnesses, subject to Paragraph 6 hereof.

5. Information shall be designated by the producing party or non-party as Confidential Information or AEO in the following manner:

- a. in the case of information contained in a document, answer to interrogatory, answer to request for admission, response to request for production of documents, response to subpoena, expert report, or other writing, by stamping or otherwise marking, in such a manner as not to interfere with the legibility of the documents, the label “Confidential,” “Attorneys Eyes Only,” or “AEO” on the face thereof at the time of production or copying;
- b. in the case of information contained or revealed in a deposition, whether in a question, answer, or exhibit, by noting the designation on the record at the time of the deposition, or within thirty (30) business days after receipt of the deposition transcript for fact depositions and fifteen (15) business days after receipt of the deposition transcript for expert depositions. The transcript pages and any associated documents containing confidential information shall be bound separately and shall contain on each page, including the cover page, an appropriate notation identifying it as “Confidential,” “Attorneys Eyes Only,” “AEO”.

- c. all Confidential Information or AEO material which is to be filed with the Administrative Law Judge (“ALJ”) or Commission, or materials containing, reproducing, incorporating or otherwise disclosing Confidential Information or AEO material shall be filed and labeled in accordance with 46 CFR §502.5 and paragraphs 19 - 56 of the Initial Order entered on January 17, 2025; and
 - d. in the case of information exchanged prior to the entry of this Order, by procedures adopted by counsel for the parties, which shall be consistent with those specified in subparts (a) – (c) of this paragraph 4.
- 6. It is the responsibility of all persons receiving materials containing Confidential Information or AEO material that is properly marked to maintain such materials in a secure and appropriately identified manner.
- 7. It is the responsibility of counsel for each party to this action to ensure that those receiving Confidential Information or AEO material have knowledge of the terms of this Order and agree to be bound by them. Prior to any such disclosure, recipients who are approved pursuant to paragraph 2(b) or (f) or 3(e) above must read and agree in writing to abide by the terms of this Order in the form of the agreement attached hereto as Exhibit A. A copy of each recipient’s written agreement shall be kept by the party divulging the Confidential Information or AEO material.
- 8. When serving any discovery request or subpoena upon a non-party, it shall be the obligation of the party requesting such discovery to include a copy of this Order with the discovery request or subpoena.
- 9. Any producing party or non-party may retroactively designate any discovery material containing Confidential Information or AEO material that it produced without the

appropriate designation by providing written notice to counsel for all Parties, informing them of the delayed designation. Such notice must be provided within a reasonable time following a producing party or non-party's discovery of the forgotten designation.

10. The designation of information as Confidential or AEO by the producing party or non-party shall not waive or affect in any way the right of the receiving party to contest the designation. A confidential designation may be contested in the following manner:

- a. Counsel for the Parties shall confer in a good faith effort to resolve any disagreement.
- b. Upon a failure to resolve the disagreement, the objecting party may file an appropriate motion with the Presiding Officer and shall (1) certify that s/he sought in good faith to confer with opposing counsel but was unable to resolve the dispute; and (2) identify with specificity the document(s) and/or information for which relief is sought.
- c. Within ten (10) business days of receiving the objecting party's motion, the non-objecting party or non-party shall issue a response outlining with particularity the reasons why such document(s) and/or information are properly designated as Confidential Information or AEO.
- d. The burden of establishing that document(s) and/or information is Confidential Information or AEO shall be on the party or non-party designating it as such.
- e. If a non-objecting party issues a timely response pursuant to subparagraph (c) above, the designation of confidentiality shall remain in full force and effect and the information shall continue to be accorded the treatment required by this Order until the motion is ruled upon by the Presiding Officer.

11. The production or disclosure of Confidential Information or AEO material shall in no way constitute a waiver of any sort, including of: (a) any producing party or non-party's right to object to the production or disclosure of other information in this proceeding or in any other proceeding; (b) any objections to discovery or admissibility that any producing party or non-party or receiving party may assert; or (c) the Parties' ability to use their own documents, communications, information, or testimony.
12. Nothing herein shall be deemed to waive any attorney-client privilege, attorney work product protection, or similar protection recognized by applicable law, or be deemed an admission as to the admissibility in evidence of any facts, documents, communications, information, or testimony revealed in the course of discovery. In particular, any production of privileged or protected discovery material does not constitute a waiver of any claim of attorney-client privilege, work product protection, or any similar protection. A party that receives any inadvertently produced privileged, work product, or similarly protected discovery material shall promptly return any such material upon notification or discovery of the inadvertent production, shall return such material, and shall not use the material or any information therein for any purpose other than to challenge whether such material is privileged or protected. Upon a challenge to privilege or protection, the challenged material shall be treated as if is "Attorneys Eyes Only" or "AEO" material, until such time as the Presiding Officer rules on the materials privilege status.
13. If Confidential Information or AEO material in the possession of the receiving party is subpoenaed by any court, administrative or legislative body, or any other person purporting to have authority to subpoena such information, the party to whom the subpoena is directed shall promptly provide counsel for the producing party or non-party with (i) written notice

of receipt of the subpoena and (ii) a copy of the subpoena. In the event that a subpoena purports to require production of such Confidential or AEO information within seven (7) or less days of receipt, the party to whom the subpoena is directed shall provide counsel for the producing party or non-party with (i) immediate notice via email of receipt of the subpoena and (ii) a copy of the subpoena. .

14. Within thirty (30) days after the conclusion of this proceeding, including any appellate proceedings, all Confidential and AEO information (including any copies and documents containing information derived therefrom) shall be destroyed or returned to the producing party or non-party, at the election of the receiving party, provided that documents previously filed with the Commission containing such information may either be destroyed or retained under seal and preserved as confidential in accordance with the terms of this Order.

15. The provisions of this Order shall survive and remain in full force and effect after the conclusion of this proceeding, including any appellate proceedings.

SO ORDERED,

Erin M. Wirth
Chief Administrative Law Judge

Dated: _____, 2026

EXHIBIT A

The undersigned, having been requested to assist in connection with the above captioned matter hereby agrees as follows:

1. I have read the Protective Order entered in this proceeding and agree to abide by its terms.
2. I agree that any Discovery Material designated as “CONFIDENTIAL,” “ATTORNEYS’ EYES ONLY” and/or “AEO” which I see, hear, or learn about in connection with this proceeding, including documents and deposition transcripts, may be used solely for the purpose of this proceeding and not for any other purpose. I agree not to disclose to any person any such Discovery Material designated as “CONFIDENTIAL,” “ATTORNEYS’ EYES ONLY” and/or AEO except as specifically authorized by the Protective Order.
3. When this litigation is terminated, either by expiration of the time to appeal or after issuance of the appellate mandate after an appeal, I agree to return to the party and lawyers whom I am assisting, any Discovery Material and information designated as “CONFIDENTIAL,” “ATTORNEYS’ EYES ONLY” and/or AEO or to destroy all such Discovery Material.

Dated this ____ day of _____, 2026

Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondent CMA CGM S.A. by emailing a copy to their counsel of record listed below:

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Dated: February 5, 2026

/s/ J. Zachery Morris

J. Zachery Morris
*Counsel for Complainant 20230930-DK-
Butterfly-1, Inc.*